

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1537

By: Dollens

AS INTRODUCED

An Act relating to amusements and sports; enacting the Supporting Affordability and Fairness with Every Bet Act of 2025 or the SAFE Bet Act; defining terms; providing prohibition on sports wagering; providing exceptions; authorizing Attorney General to bring civil action; providing that trial shall be by a jury; providing for civil penalties; providing for jurisdiction; directing state to submit application; providing information application shall include; directing the state to submit notice of change; allowing state to renew approval; providing standards state sports wagering program shall meet; providing location certain sports wager shall be deemed to have occurred; authorizing the state or Indian Tribe to enact measures; providing for severability; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 801 of Title 3A, unless there is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Supporting
2 Affordability and Fairness with Every Bet Act of 2024" or the "SAFE
3 Bet Act".

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 802 of Title 3A, unless there is
6 created a duplication in numbering, reads as follows:

7 As used in this act:

8 1. "Amateur athletic competition" has the meaning given the
9 term in 36 U.S.C., Section 220501;

10 2. With respect to a sports wager accepted by a sports wagering
11 operator, the term "anonymized sports wagering data" means:

12 a. a unique identifier for the transaction and, if
13 available, the individual who placed the sports wager,
14 except that such identifier shall not include any
15 personally identifiable information of such
16 individual,

17 b. the amount and type of sports wager,

18 c. the date and time at which the sports wager was
19 accepted,

20 d. the location at which the sports wager was placed,
21 including the Internet protocol address, if
22 applicable, and

23 e. the outcome of the sports wager;

24 3. "Gambling disorder" means:

- a. gambling disorder, as the term is used by the American Psychiatric Association in the publication entitled *Diagnostic and Statistical Manual of Mental Disorders, 5th Edition* or a successor edition,
- b. pathological gambling,
- c. gambling addiction, and
- d. compulsive gambling;

4. "Governmental entity" means:

- a. a state,
- b. a political subdivision of a state, and
- c. an entity or organization, including an Indian Tribe, that has governmental authority within the territorial boundaries of the United States, including Indian lands;

5. "Indian lands" has the meaning given the term in Section 4 of the Indian Gaming Regulatory Act, 25 U.S.C., Section 2703;

6. "Indian Tribe" has the meaning given the term "Indian tribe" in Section 4 of the Indian Gaming Regulatory Act, 25 U.S.C., Section 2703;

7. "Interactive sports wagering platform" means a person or entity that offers licensed sports wagering over the Internet, including through an Internet website and mobile devices, on behalf of a licensed gaming facility;

1 8. "Interstate sports wagering compact" means a compact to
2 offer sports wagering in accordance with this act between:

- 3 a. two or more states with a state sports wagering
4 program,
- 5 b. one or more states with a state sports wagering
6 program and one or more Indian Tribes, or
- 7 c. two or more Indian Tribes;

8 9. "Licensed gaming facility" means a person licensed by a
9 state regulatory entity or an Indian Tribe licensed by a state
10 regulatory agency for the conduct of gaming;

11 10. "Microbet" means a wager placed on an outcome or occurrence
12 within a sporting event which may or may not be related to the
13 ultimate result of the sporting event;

14 11. "Official" means a referee, umpire, judge, reviewer, or any
15 other individual authorized to administer the rules of a sporting
16 event;

17 12. "Proposition bet" means a side wager on a part of a
18 sporting event that does not concern the final outcome of the
19 sporting event;

20 13. "Reasonable lender standard" means application of
21 underwriting criteria that would be applied by a lender that is an
22 insured depository institution, as defined under Section 3 of the
23 Federal Deposit Insurance Act, 12 U.S.C., Section 1813, for an
24 unsecured loan extended to a consumer;

1 14. "Sporting event" means any athletic competition;

2 15. "Sports organization" means:

3 a. a person or governmental entity that:

4 (1) sponsors, organizes, schedules, or conducts a
5 sporting event, and

6 (2) with respect to the sporting event and the
7 participants in the sporting event:

8 (a) prescribes final rules, and

9 (b) enforces a code of conduct, and

10 b. a league or association of one or more persons or
11 governmental entities described in subparagraph a of
12 this paragraph;

13 16. Except as provided in subparagraph b of this paragraph, the
14 term "sports wager" means the staking or risking by any person of
15 something of value upon the outcome of a sporting event, including
16 the outcome of any portion or aspect thereof, upon an agreement or
17 understanding that the person or another person will receive
18 something of value in the event of a certain outcome.

19 a. With respect to an amateur or professional sporting
20 event, the term "sports wager" includes:

21 (1) a straight bet,

22 (2) a teaser,

23 (3) a variation of a teaser,

24 (4) a parlay,

- (5) a total or over-under,
- (6) a moneyline,
- (7) a betting pool,
- (8) exchange wagering,
- (9) in-game wagering, including in-game wagering on:
 - (a) a final or interim game score,
 - (b) statistics, or
 - (c) a discrete in-game event,
- (10) a sports lottery, and
- (11) a proposition bet.

b. The term "sports wager" does not include:

- (1) any activity excluded from the definition of the term "bet or wager" under 31 U.S.C., Section 5362, or
- (2) any activity that does not violate a provision of the Interstate Horseracing Act of 1978, 15 U.S.C., Section 3001 et seq.;

17. "Sports wagering" means the acceptance of a sports wager by a sports wagering operator;

18. "Sports wagering operator" means:

- a. a licensed gaming facility that offers sports wagering, and
- b. an interactive sports wagering platform;

1 19. "Sports wagering opt-in state" means a state that
2 administers a state sports wagering program;

3 20. "State" means:

- 4 a. a state,
- 5 b. the District of Columbia, and
- 6 c. any commonwealth, territory, or possession of the
7 United States;

8 21. "State regulatory entity" means the governmental entity:

- 9 a. established or designated by a sports wagering opt-in
10 state under division (2) of subparagraph a of
11 paragraph 2 of subsection A of Section 4 of this act,
12 and
- 13 b. responsible, solely or in coordination with one or
14 more other governmental entities, for the regulation
15 of sports wagering in the applicable sports wagering
16 opt-in state;

17 22. "State social gambling law" means a state law that allows
18 sports wagering that:

- 19 a. is not conducted as a business,
- 20 b. involves two or more players who compete on equal
21 terms, and
- 22 c. does not provide a benefit to:
 - 23 (1) a player, other than the winnings of the player,
 - 24 or

1 (2) a person who is not involved in a sports wager;

2 23. "State sports wagering program" means a program
3 administered and overseen by a state pursuant to an application
4 approved by the Attorney General pursuant to Section 4 of this act;

5 24. "Suspicious transaction" means a transaction or an
6 arrangement that a sports wagering operator knows or has reason to
7 know, as determined by a director, officer, employee, or agent of
8 the sports wagering operator is or would be if completed:

9 a. a violation of, or part of a plan to violate or evade,
10 any federal, state, or local law, including
11 regulations, or

12 b. sports wagering by or on behalf of an individual
13 described in Section 5 of this act;

14 26. "Suspicious transaction report" means a report submitted to
15 a state regulatory entity or a sports organization under paragraph
16 13 of subsection B of Section 5 of this act; and

17 27. "Tribal-state compact" means a compact entered into between
18 a state and an Indian Tribe pursuant to Section 11(d)(3) of the
19 Indian Gaming Regulatory Act, 25 U.S.C., Section 2710(d)(3).

20 SECTION 3. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 803 of Title 3A, unless there is
22 created a duplication in numbering, reads as follows:

23 A. Except as provided in subsection B of this section, it shall
24 be unlawful for any person to knowingly accept a sports wager.

1 B. It shall not be a violation of subsection A of this section
2 for:

3 1. A sports wagering operator located in a sports wagering opt-
4 in state to accept a sports wager in accordance with state law; or

5 2. A person to accept a sports wager in accordance with an
6 applicable state social gambling law.

7 C. 1. If the Attorney General believes a person has violated,
8 is violating, or will violate subsection A of this section, the
9 Attorney General may bring a civil action in the appropriate court,
10 which shall have jurisdiction in proceedings in accordance with the
11 Federal Rules of Civil Procedure to enjoin a violation of subsection
12 A of this section.

13 2. In the case of an alleged violation of an injunction or
14 restraining order issued under paragraph 1 of this subsection, trial
15 shall be, on demand of the accused, by a jury in accordance with the
16 Federal Rules of Civil Procedure.

17 D. 1. Any person who violates subsection A of this section
18 shall be, with respect to any such violation, subject to a civil
19 penalty of not more than the greater of Ten Thousand Dollars
20 (\$10,000.00) or three times the amount of the applicable sports
21 wager.

22 2. A separate violation occurs for each sports wager accepted
23 in violation of subsection A of this section.
24

1 3. The district courts of the United States and appropriate
2 United States courts of the territories and possessions of the
3 United States shall have jurisdiction to enforce this subsection in
4 accordance with 28 U.S.C., Section 1355.

5 4. A violation of subsection A of this section shall not
6 constitute a crime, and a judgment for the United States and
7 imposition of a civil penalty pursuant to paragraph 1 of this
8 subsection shall not give rise to any disability or legal
9 disadvantage based on conviction for a criminal offense.

10 E. Civil penalty not exclusive of criminal penalty. A civil
11 penalty, injunction, or temporary restraining order imposed under
12 this section shall be independent of, and not in lieu of, criminal
13 prosecutions or any other proceedings under any other law of the
14 United States, including 18 U.S.C., Sections 1084 and 1955.

15 SECTION 4. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 804 of Title 3A, unless there is
17 created a duplication in numbering, reads as follows:

18 A. 1. The state shall submit an application to the Attorney
19 General at such time, in such manner, and accompanied by such
20 information as the Attorney General may require to request approval
21 to administer a state sports wagering program.

22 2. An application under paragraph 1 of this subsection shall
23 include:
24

1 a. a full and complete description of the state sports
2 wagering program the state proposes to administer
3 under state law, including:

4 (1) each applicable state law relating to sports
5 wagering, and

6 (2) an identification of the state regulatory entity,
7 and

8 b. an assurance from the state's attorney general or that
9 the laws of the state provide adequate authority to
10 carry out the proposed state sports wagering program.

11 B. In the case of a material change to a state law relating to
12 sports wagering, the state regulatory entity, or other information
13 included in an application submitted pursuant to subsection A or E
14 of this section, not later than thirty (30) days after the date on
15 which the change is made, the state shall submit to the Attorney
16 General a notice of such change.

17 C. Not later than the date on which the period of three (3)
18 years referred to in subsection D of this section ends, a state
19 seeking to renew the approval of the state sports wagering program
20 may submit to the Attorney General a renewal application that
21 includes the information described in subsection A of this section.

22 SECTION 5. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 805 of Title 3A, unless there is
24 created a duplication in numbering, reads as follows:

1 A. The state sports wagering program shall meet each of the
2 following standards:

3 1. Establish or designate a public entity in the applicable
4 state as the state regulatory entity for the purposes of regulating
5 sports wagering operators and enforcing sports wagering laws in the
6 state;

7 2. a. Provide that in-person sports wagering may be offered
8 only by a sports wagering operator.

9 b. (1) With respect to any authorization of sports
10 wagering on an interactive sports wagering
11 platform, provide that such sports wagering, as
12 available, is available only to:

13 (a) individuals located in the state, or

14 (b) in the case of an interstate sports wagering
15 compact approved by the Attorney General,
16 individuals located in states and on Indian
17 lands of Indian Tribes that are party to the
18 compact.

19 (2) Include location verification requirements
20 reasonably designed to prevent an individual from
21 placing a sports wager on an interactive sports
22 wagering platform from a location other than a
23 location described in division (1) of this
24 paragraph.

- 1 c. (1) Provide that a sports wagering operator shall not
2 accept a sports wager unless such sports wager or
3 class of sports wagers is expressly approved by
4 the state regulatory entity.
- 5 (2) Direct the state regulatory entity to establish
6 criteria for decisions with respect to the
7 approval of a sports wager or a class of sports
8 wagers, such as whether the outcome of the event
9 or contingency on which the sports wager is
10 placed is:
- 11 (a) verifiable,
12 (b) generated by a reliable and independent
13 process, and
14 (c) unlikely to be affected by any sports wager
15 placed.
- 16 d. Prohibit the state regulatory entity from approving,
17 or a sports wagering operator from accepting, a
18 proposition bet on:
- 19 (1) any amateur athletic competition, or
20 (2) any intercollegiate sport, as defined in the
21 Sports Agent Responsibility and Trust Act, 15
22 U.S.C., Section 7801.
- 23 e. Prohibit the state regulatory entity from approving,
24 or a sports wagering operator from accepting, a sports

1 wager on any sporting event, once such event has
2 commenced;

3 3. a. In this paragraph, the term "necessary to maintain
4 contest integrity" means that, in the absence of a
5 restriction, there is a reasonably foreseeable risk
6 that the outcome of the sporting event or contingency
7 on which the wager is placed would be affected by the
8 wager.

9 b. Prohibit a sports wagering operator from accepting a
10 sports wager in violation of a notice of restriction
11 received by the sports wagering operator under
12 subparagraph e of paragraph 2 of subsection B of
13 Section 5 of this act.

14 c. (1) With respect to sporting events sponsored,
15 organized, or conducted by a sports organization,
16 permit the sports organization to submit to the
17 state regulatory entity a request to restrict,
18 limit, or exclude wagers on one or more sporting
19 events, including by restricting, limiting, and
20 excluding sports wagers on one or more
21 performances of an athlete in one or more
22 sporting events in which such athlete
23 participates, if the applicable sports
24

1 organization determines that such restriction is
2 necessary to maintain contest integrity.

3 (2) Provide that the state regulatory entity shall
4 establish reasonable deadlines for the submission
5 of a request under division (1) of this
6 subparagraph in advance of the applicable
7 sporting event.

8 d. Provide that the state regulatory entity shall
9 promptly:

10 (1) approve a request described in division (1) of
11 subparagraph c of paragraph 3 of this subsection
12 unless the state regulatory entity determines,
13 considering any information provided by the
14 sports organization and any other relevant
15 information, that a restriction is not necessary
16 to maintain contest integrity,

17 (2) provide a written explanation of a determination
18 under division (1) of this subparagraph to
19 approve or deny a request,

20 (3) make such written explanation available to the
21 public, and

22 (4) provide a process by which the sports
23 organization that submitted the request may seek
24 review of such determination.

1 e. Provide that the state regulatory entity shall
2 establish a process:

3 (1) to provide to sports wagering operators prompt
4 notice of any restriction approved by the state
5 regulatory entity, and

6 (2) to make such notice publicly available;

7 4. Prohibit a sports wagering operator from accepting sports
8 wagers from any:

9 a. individual younger than twenty-one (21) years of age,

10 b. individual on a self-exclusion list,

11 c. athlete, coach, official, or employee of a sports
12 organization or any club or team of a sports
13 organization, with respect to a sporting event
14 sponsored, organized, or conducted by the sports
15 organization,

16 d. employee of a player or an official union of a sports
17 organization, with respect to a sporting event
18 sponsored, organized, or conducted by the sports
19 organization,

20 e. individual who, with respect to a sporting event
21 sponsored, organized, or conducted by a sports
22 organization, is:

23 (1) credentialed or accredited by the sports
24 organization, and

1 (2) prohibited from placing a sports wager by the
2 terms of such credential or accreditation, or
3 f. individual convicted of an offense under 18 U.S.C.,
4 Section 224(a) or Section 224(b);

5 5. a. (1) With respect to any sports wager accepted on or
6 before November 1, 2025, provide that a sports
7 wagering operator shall determine the result of a
8 sports wager only with data that is licensed and
9 provided by:

10 (a) the applicable sports organization, or

11 (b) an entity expressly authorized by the
12 applicable sports organization to provide
13 such information.

14 (2) With respect to any sports wager accepted after
15 November 1, 2025, provide that a sports wagering
16 operator shall determine the result of a sports
17 wager only with data that is obtained from a
18 source that the state regulatory entity has:

19 (a) found to provide:

20 i. data of substantially similar speed,
21 accuracy, and consistency to the data
22 available under division (1) of this
23 subparagraph, and

24 ii. only data that is:

1 (A) legally obtained, and

2 (B) in full compliance with the terms
3 of any applicable contract or
4 license,

5 (b) expressly authorized to provide such data to
6 sports wagering operators, and

7 (c) identified in the application of the state
8 regulatory entity under Section 4 of this
9 act.

10 b. Provide that the statistics, result, outcome, or other
11 data used by a sports wagering operator for a purpose
12 other than to determine the result of a sports wager
13 shall be in the public domain or otherwise legally
14 obtained;

15 6. a. (1) Provide a process by which an individual may
16 restrict himself or herself from placing a sports
17 wager with a sports wagering operator located in
18 the state, including by imposing sports wager
19 limits.

20 (2) Provide, through the state regulatory entity
21 acting in cooperation with the Board of Mental
22 Health and Substance Abuse Services, a process by
23 which an individual may restrict himself or
24 herself from placing a sports wager with a sports

wagering operator located in any sports wagering opt-in state, including by imposing sports wager limits, and placing himself or herself on the national self-exclusion list.

(3) Provide that a sports wagering operator may not accept a sports wager by an individual who is:

(a) described in division (1) of this subparagraph, or

(b) included on the national self-exclusion list.

b. Prohibit a sports wagering operator from:

(1) requiring an individual engaged in sports wagering to participate in a publicity or an advertising activity of the sports wagering operator as a condition of withdrawal of the winnings of the individual, and

(2) imposing on any individual engaged in sports wagering:

(a) a minimum or maximum withdrawal limit for the account of the individual,

(b) any restriction on the right of the individual to make a withdrawal from the account of the individual based on the

1 extent of the sports wagering by the
2 individual,

3 (c) an unreasonable deadline for the provision
4 of information relating to the identity of
5 the individual as a condition of withdrawal
6 from the account of the individual, or

7 (d) a dormancy charge for an account of the
8 individual that is not used to place a
9 sports wager.

10 c. (1) Provide that a sports wagering operator shall
11 provide an individual with adequate and clear
12 information relating to any applicable
13 restriction or condition before the individual
14 opens an account with the sports wagering
15 operator.

16 (2) Provide that a sports wagering operator shall
17 provide to an individual engaged in sports
18 wagering clear information relating to any bonus
19 offered, including the terms of withdrawal of the
20 bonus.

21 (3) Provide that the information described in
22 divisions (1) and (2) of this subparagraph be
23 available to the public.
24

- 1 d. Provide that a sports wagering operator shall allocate
2 an appropriate percentage of the revenue from sports
3 wagering to:
- 4 (1) treatment for gambling disorder, and
5 (2) education on responsible gaming.
- 6 e. Provide that a sports wagering operator shall maintain
7 a reserve in an amount not less than the sum of:
- 8 (1) the amounts held by the sports wagering operator
9 for the account of patrons,
- 10 (2) the amounts accepted by the sports wagering
11 operator as sports wagers on contingencies the
12 outcomes of which have not been determined, and
13 (3) the amounts owed but unpaid by the sports
14 wagering operator on winning wagers during the
15 period for honoring winning wagers established by
16 state law or the sports wagering operator.
- 17 f. Provide that a sports wagering operator:
- 18 (1) may not accept more than five deposits from an
19 individual during a twenty-four-hour period,
- 20 (2) may not accept deposits made using a credit card,
21 and
22 (3) shall be required, before accepting sport wagers
23 from an individual in an amount that is more than
24 One Thousand Dollars (\$1,000.00) during a twenty-

four-hour period or Ten Thousand Dollars (\$10,000.00) during a thirty-day period, to conduct an affordability check which shall be satisfied by one or both of the following ways:

- (a) verification that the proposed deposit is not greater than thirty percent (30%) of the monthly income of the individual,
- (b) verification through a reasonable lender standard based on issuance of an unsecured loan for the proposed deposit through methods normally used by consumer lenders.

g. Provide that a sports wagering operator may not use artificial intelligence to:

- (1) track the sports wagers of an individual,
- (2) create an offer or promotion targeting a specific individual, or
- (3) create a gambling product, such as a microbet;

7. Provide that advertisements for a sports wagering operator:

a. shall:

- (1) disclose the identity of the sports wagering operator, and
- (2) provide information about how to access resources relating to gambling addiction,

b. shall not recklessly or purposefully target:

- (1) problem gamblers,
 - (2) individuals suffering from gambling disorder, or
 - (3) individuals who are ineligible to place a sports wager, including individuals younger than twenty-one (21) years of age,
 - c. may not be broadcasted:
 - (1) between the hours of 8:00 a.m. and 10:00 p.m. local time, or
 - (2) during a live broadcast of a sporting event, and
 - d. may not include:
 - (1) odds boosts or similar offers, including advertising that contains the phrase "bonus", "no sweat", "bonus bet", or any other similar term, or
 - (2) any information on how to place a sports wager or how sports wagers work;
8.
 - a. Provide that a sports wagering operator located in the state shall be licensed by the state regulatory entity.
 - b.
 - (1) Provide that before granting a license to a prospective sports wagering operator, the state regulatory entity shall make a determination, based on a completed background check and investigation, with respect to whether the

1 prospective sports wagering operator and any
2 person considered to be in control of the
3 prospective sports wagering operator is suitable
4 for license in accordance with suitability
5 standards established by the state regulatory
6 entity.

7 (2) Provide that if a prospective sports wagering
8 operator is a corporation, partnership, or other
9 business entity, a background check and
10 investigation shall occur with respect to:

11 (a) the president or other chief executive of
12 the corporation, partnership, or other
13 business entity, and

14 (b) any other partner or senior executive and
15 director of the corporation, partnership, or
16 other business entity, as determined by the
17 state regulatory entity.

18 (3) Establish standards and procedures for conducting
19 the background checks and investigations
20 described in this subparagraph.

21 c. With respect to the suitability standards under
22 division (1) of subparagraph b of this paragraph,
23 provide that a prospective sports wagering operator
24 shall not be determined to be suitable for licensing

1 as a sports wagering operator if the prospective
2 sports wagering operator:

3 (1) has failed to provide information and documentary
4 material for a determination of suitability for
5 licensing as a sports wagering operator,

6 (2) has supplied information which is untrue or
7 misleading as to a material fact pertaining to
8 any such determination,

9 (3) has been convicted of an offense punishable by
10 imprisonment of more than one (1) year,

11 (4) is delinquent in:

12 (a) filing any applicable federal or state tax
13 returns, or

14 (b) the payment of any taxes, penalties,
15 additions to tax, or interest owed to the
16 United States or a state,

17 (c) has knowingly participated in, or should
18 have known the prospective sports wagering
19 operator was participating in, an illegal
20 Internet gambling activity, including:

- 21 i. taking an illegal Internet wager,
22 ii. payment of winnings on an illegal
23 Internet wager,
24

1 iii. promotion through advertising of an
2 illegal Internet gambling website or
3 service, or

4 iv. collection of any payment on behalf of
5 an entity operating an illegal Internet
6 gambling website, or

7 (d) has knowingly been owned, operated, managed,
8 or employed by, or should have known the
9 prospective sports wagering operator was
10 owned, operated, managed, or employed by,
11 any person who was knowingly participating
12 in, or should have known the person was
13 participating in, an illegal Internet
14 gambling activity, including an activity
15 described in clauses i through iv of
16 subdivision (a) of division (5) of this
17 subparagraph,

18 (5) has:

19 (a) received any assistance, financial or
20 otherwise, from a person who has, before the
21 effective date of this act, knowingly
22 accepted bets or wagers from any other
23 person who is physically present in the
24

1 United States in violation of federal or
2 state law, or

3 (b) provided any assistance, financial or
4 otherwise, to a person who has, before the
5 effective date of this act, knowingly
6 accepted bets or wagers from any other
7 person who is physically present in the
8 United States in violation of federal or
9 state law,

10 (6) with respect to any other entity that has
11 accepted a bet or wager from any individual in
12 violation of United States law, has purchased or
13 otherwise obtained:

14 (a) such entity,

15 (b) a list of the customers of such entity, or

16 (c) any other part of the equipment or
17 operations of such entity, or

18 (7) fails to certify in writing, under penalty of
19 perjury, that the applicant or other such person,
20 and all affiliated business entities (including
21 all entities under common control), during the
22 entire history of such applicant or other such
23 person and all affiliated business entities:

1 (a) have not committed an intentional felony
2 violation of federal or state sports
3 wagering law, and

4 (b) have used diligence to prevent any United
5 States person from placing a sports wager on
6 an Internet site in violation of federal or
7 state sports wagering laws.

8 d. Establish standards and procedures for suspending or
9 revoking the license of a sports wagering operator;

10 9. Provide that a sports wagering operator:

11 a. shall ensure that each existing and newly hired
12 employee or contractor of the sports wagering operator
13 undergo an annual criminal history background check,
14 and

15 b. shall not employ or enter into a contract with any
16 individual who has been convicted of a federal or
17 state crime relating to sports wagering;

18 10. a. Except as provided in subparagraph b of this
19 paragraph, with respect to each sports wager accepted
20 by a sports wagering operator or attempted to be
21 placed by an individual with a sports wagering
22 operator, provide that the sports wagering operator
23 shall secure and maintain a record of the following:
24

1 (1) the name, permanent address, date of birth, and
2 Social Security number or passport number of the
3 individual who placed, or attempted to place, the
4 sports wager, which the sports wagering operator
5 shall verify in accordance with the requirements
6 for verification of identity in 31 C.F.R., Parts
7 1010.312 and 1021.312, or any successor
8 regulation,

9 (2) the amount and type of the sports wager,

10 (3) the date and time at which the sports wager was
11 placed or attempted to be placed,

12 (4) the location at which the sports wager was placed
13 or attempted to be placed, including the Internet
14 protocol address, if applicable, and

15 (5) the outcome of the sports wager.

16 b. Provide that a sports wagering operator shall not be
17 required to maintain a record of the information
18 described in subparagraph a of this paragraph if:

19 (1) the sports wager is not placed by an individual
20 through an account with the sports wagering
21 operator,

22 (2) the amount of the sports wager does not exceed
23 Ten Thousand Dollars (\$10,000.00),
24

1 (3) the sports wagering operator and any officer,
2 employee, or agent of the sports wagering
3 operator does not have knowledge, or would not in
4 the ordinary course of business have reason to
5 have knowledge, that the sports wager is one of
6 multiple sports wagers placed by an individual or
7 on behalf of an individual during one (1) day
8 that are, in the aggregate, in excess of Ten
9 Thousand Dollars (\$10,000.00), and

10 (4) the sports wagering operator is not required,
11 pursuant to 26 C.F.R., Section 31.3402(q)-1, or a
12 successor regulation, to furnish a Form W-2G to
13 the individual who placed the sports wager with
14 respect to winnings from the sports wager.

15 c. Provide that, in addition to the records required to
16 be maintained pursuant subparagraph a of this
17 paragraph, a sports wagering operator shall be
18 required to maintain any other records relating to a
19 suspicious transaction, including video recordings, in
20 the possession, custody, or control of the sports
21 wagering operator.

22 d. Provide that a sports wagering operator shall be
23 required to maintain each record required under this
24

1 paragraph for not fewer than five (5) years after the
2 date on which the record is created;

3 11. Provide that a sports wagering operator and the state
4 regulatory entity shall take reasonable steps to prevent
5 unauthorized access to, or dissemination of, sports wagering and
6 customer data;

7 12. Provide that a sports wagering operator shall provide to
8 the state regulatory entity anonymized sports wagering data in real-
9 time or as soon as practicable, but not later than twenty-four (24)
10 hours, after the time at which a sports wager is accepted by the
11 sports wagering operator;

12 13. a. Provide that each sports wagering operator located in
13 the state shall promptly report the information
14 described in subparagraph a of paragraph 10 of this
15 subsection for any suspicious transaction to the state
16 regulatory entity, in such manner and accompanied by
17 such additional information as the state regulatory
18 entity may require.

19 b. (1) Subject to division (2) of this subparagraph,
20 provide that a sports wagering operator shall
21 simultaneously transmit to the applicable sports
22 organization, and any component of the Department
23 of Justice or other federal law enforcement
24 entity designated by the Attorney General to

1 receive such reports, any suspicious transaction
2 report submitted to a state regulatory entity
3 under subparagraph a of this paragraph.

4 (2) (a) Except as provided in subdivision (b) of
5 this division, a suspicious transaction
6 report submitted to a sports organization
7 shall not contain any personally
8 identifiable information relating to any
9 individual who placed, or attempted to
10 place, a sports wager.

11 (b) A suspicious transaction report submitted to
12 a sports organization shall include any
13 available personally identifiable
14 information relating to an individual
15 described in subparagraph c, d, or e of
16 paragraph 4 of this subsection;

17 14. a. Provide that the state regulatory entity, in
18 consultation with law enforcement, shall develop and
19 implement a strategy to enforce the sports wagering
20 laws of the state.

21 b. Provide adequate authority to the state regulatory
22 entity and law enforcement, as appropriate, to monitor
23 compliance with and enforce the sports wagering laws
24 of the state, including:

- (1) the authority and responsibility to conduct periodic audits and inspect the books and records of each sports wagering operator located or operating in the state, and
- (2) a requirement that the state regulatory entity shall refer evidence of potential criminal violations to the appropriate law enforcement entity;

15. a. Provide that any sports wagering operator located or operating in the state shall cooperate with any lawful investigation conducted by:

- (1) the state regulatory entity,
- (2) federal or state law enforcement, or
- (3) a sports organization, with respect to a sports wager:
 - (a) on a sporting event sponsored, organized, or conducted by the sports organization,
 - (b) placed by or on behalf of an individual described in subparagraph c, d, or e of paragraph 4 of this subsection, and
 - (c) accepted by the sports wagering operator.

b. Provide that the state regulatory entity shall cooperate with any lawful investigation conducted by:

- (1) federal or state law enforcement, or

(2) a sports organization, with respect to a sports
wager:

(a) on a sporting event sponsored, organized, or
conducted by the sports organization, and

(b) accepted by a sports wagering operator
located or operating in the state;

16. a. Provide that each sports wagering operator shall
devise and maintain a system of internal controls
sufficient to provide reasonable assurances that
sports wagers are accepted in accordance with all
applicable laws, regulations, and policies.
- b. Provide that the state regulatory entity shall adopt
and publish minimum standards for internal control
procedures.
- c. Provide that each sports wagering operator shall
submit to the state regulatory entity not less
frequently than annually the written system of
internal controls of the sports wagering operator.
- d. Provide that system of internal controls of a sports
wagering operator shall be evaluated on a periodic
basis, but not less frequently than every three (3)
years, by the state regulatory entity or an
independent third-party auditor.

1 SECTION 6. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 806 of Title 3A, unless there is
3 created a duplication in numbering, reads as follows:

4 A. 1. For purposes of the Indian Gaming Regulatory Act, 25
5 U.S.C., Section 2701 et seq., a sports wager made through an
6 interactive sports wagering platform shall be deemed to be made at
7 the physical location of the server or other equipment used to
8 accept the sports wager.

9 2. With respect to a sports wager described in paragraph 1 of
10 this subsection accepted through a server or other equipment located
11 on Indian lands, the sports wager shall be considered to be
12 exclusively occurring on Indian lands if:

13 a. the sports wager and the server are in the same state,
14 and

15 b. the applicable state and Indian Tribe have entered
16 into a Tribal-state compact authorizing the placing of
17 sports wagers through interactive sports wagering
18 platforms.

19 B. Nothing in this act preempts or limits the authority of a
20 state or an Indian Tribe to enact, adopt, promulgate, or enforce any
21 law, rule, regulation, or other measure with respect to sports
22 wagering that is in addition to, or more stringent than, the
23 requirements of this act.

1 C. Nothing in this act limits or otherwise affects the taxation
2 of sports wagering by a state, an Indian Tribe, or a locality.

3 SECTION 7. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 807 of Title 3A, unless there is
5 created a duplication in numbering, reads as follows:

6 If a provision of this act, an amendment made by this act, a
7 regulation promulgated under this act or under an amendment made by
8 this act, or the application of any such provision, amendment, or
9 regulation to any person or circumstance, is held to be invalid, the
10 remaining provisions of this act, amendments made by this act,
11 regulations promulgated under this act or under an amendment made by
12 this act, or the application of such provisions, amendments, and
13 regulations to any person or circumstance:

14 1. Shall not be affected by the invalidity; and

15 2. Shall continue to be enforced to the maximum extent
16 practicable.

17 SECTION 8. This act shall become effective November 1, 2025.

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